

LOCAL JOBS FIRST BILL 2026

Schedule of amendments referred to in the Legislative Council's message of 24 September 2026.

No. 1 **GRNS No. 1 [c2026-194E]**

Page 3, clause 6(6), lines 15 and 16. Omit all words on the lines. Insert instead—

- (6) Subsection (5) does not apply for the following purposes—
 - (a) the Commissioner advising the Procurement Board under section 9(1)(f),
 - (b) the Commissioner giving a recommendation to the Procurement Minister under section 20(2),
 - (c) the Commissioner giving advice or making recommendations to the Minister.

No. 2 **SFF No.1 [c2026-262A]**

Page 4, clause 9(1). Insert after line 12—

- (c1) to promote the employment and development of regional workers through, and the participation of regional manufacturers and regional small and medium businesses in, NSW Government procurement,

No. 3 **GRNS No. 2 [c2026-194E]**

Page 4, clause 9(1). Insert after line 14—

- (d1) to promote lawful and ethical practices by suppliers in the supply chain for NSW Government procurement,

No. 4 **GRNS No. 6 [c2026-194E]**

Page 4, clause 9(1)(j), line 25. Omit “with”. Insert instead “, engage and receive information from”.

No. 5 **GRNS No. 2 [c2026-197E]**

Page 5, clause 12(3), lines 20 and 21. Omit all words on the lines.

No. 6 **SFF No.2 [c2026-262A]**

Page 7, clause 14(a). Insert after line 6—

- (iia) policies and initiatives to promote the employment, retention and skills of regional workers through, and the participation of regional manufacturers and regional small and medium businesses in, NSW Government procurement,

No. 7 **GOVT No. 1 [c2026-260A]**

Page 8, clause 17(3)(d), line 32. Omit “economies of Australia and New Zealand”. Insert instead “economies of New South Wales and other Australian jurisdictions”.

No. 8 **GRNS No. 5 [c2026-197E]**

Page 10, clause 21(2). Insert after line 12—

- (a1) the Procurement Minister has—
 - (i) requested the Commissioner give written advice specifying whether, in the Commissioner’s opinion, an authorisation should be given, and
 - (ii) the Procurement Minister has considered the advice given, and

No. 9 **GRNS No. 6 [c2026-197E]**

Page 10, clause 21. Insert after line 20—

- (5A) The Procurement Minister must, if the Procurement Minister has made an authorisation inconsistent with the Commissioner's advice, publish a notice on a NSW Government website specifying the reasons why the Commissioner's advice was not followed.

No. 10 **GRNS No. 7 [c2026-197E]**

Page 10, clause 22(2)(b), line 36. Insert "and responded to" after "considered".

No. 11 **GRNS No. 8 [c2026-197E]**

Page 10, clause 22(2)(b), line 37. Omit "within a reasonable time". Insert instead "no later than 20 business days".

No. 12 **GRNS No. 12 [c2026-197E]**

Page 13, clause 32. Insert after line 41—

(1A) The Procurement Board must give the Commissioner a written response no later than 40 business days after receiving a notice under subsection (1).

(1B) The response must include the following information—

- (a) whether the Procurement Board supports the Commissioner's decision, including the reasons why, and
- (b) information about the action the Procurement Board is considering to address the government agency's non-compliance.

(1C) The Commissioner may give the Minister a copy of the response.

No. 13 **GRNS No. 16 [c2026-197E]**

Page 16, clause 37(1), line 5. Omit "The Minister". Insert instead "The Standing Committee on Social Issues of the Legislative Council".

No. 14 **GRNS No. 17 [c2026-197E]**

Page 16, clause 37(1), line 7. Omit "objectives.". Insert instead—

objectives,

- (c) the local procurement policy and local procurement plans have been effective in achieving the objectives of the local procurement policy.

No. 15 **GRNS No. 1 [c2026-198I]**

Page 19, Schedule 3, lines 24 and 25. Omit all words on the lines. Insert instead—

- (c) in accordance with regulations under the *Public Works and Procurement Act 1912*, section 176IB(3A).

No. 16 **GRNS No. 2 [c2026-198I]**

Page 21, Schedule 4.2[3], proposed section 176IA. Insert after line 16—

authority means the following of the State or another jurisdiction—

- (a) a court,
- (b) a tribunal,
- (c) another person or body.

No. 17 **GRNS No. 3 [c2026-198I]**

Page 21, Schedule 4.2[3], proposed section 176IA. Insert after line 19—

listed supplier means a debarred supplier included on the list kept in accordance with regulations made under section 176IB(3A).

No. 18 **GRNS No. 4 [c2026-198I]**

Page 21, Schedule 4.2[3], proposed section 176IB, line 42. Omit all words on the line. Insert instead—

(3A) The regulations must provide for matters about the Board keeping and publishing a list in relation to debarred suppliers.

(4) The regulations may also provide for the following—

No. 19 **GRNS No. 5 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IB(5), definition of *authority*, lines 5–8. Omit all words on the lines.

No. 20 **GRNS No. 6 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC, heading, line 20. Omit “**debarred**”. Insert instead “**listed**”.

No. 21 **GRNS No. 7 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC(1), line 21. Omit “must take reasonable steps not to”. Insert instead “must not”.

No. 22 **GRNS No. 8 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC(1), line 22. Omit “debarred”. Insert instead “listed”.

No. 23 **GRNS No. 9 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC(2), line 23. Omit “must take reasonable steps not to”. Insert instead “must not”.

No. 24 **GRNS No. 10 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC(2), line 24. Omit “debarred”. Insert instead “listed”.

No. 25 **GRNS No. 11 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC(3), lines 26 and 27. Omit “must take reasonable steps not to”. Insert instead “must not”.

No. 26 **GRNS No. 12 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176IC(3), line 28. Omit “debarred”. Insert instead “listed”.

No. 27 **GRNS No. 13 [c2026-198I]**

Page 22, Schedule 4.2[3], proposed section 176ID(1), line 32. Omit “debarred”. Insert instead “listed”.

No. 28 **GRNS No. 14 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IE, line 6. Omit “**debarred or**”. Insert instead “**listed suppliers and**”.

No. 29 **GRNS No. 15 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IE(a), line 10. Omit “debarred”. Insert instead “listed”.

No. 30 **GRNS No. 16 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IE(b), line 12. Omit “debarred”. Insert instead “listed”.

No. 31 **GRNS No. 17 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IG, lines 16–23. Omit all words on the lines.

No. 32 **GRNS No. 18 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IH(1)(b), line 30. Omit “section 176ID”. Insert instead “this division or regulations made under this division”.

No. 33 **GRNS No. 19 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IH(1)(c), line 32. Omit “maintained by the Board under section 176IG(1)”. Insert instead “kept by the Board in accordance with regulations under section 176IB(3A)”.

No. 34 **GRNS No. 20 [c2026-198I]**

Page 23, Schedule 4.2[3], proposed section 176IH(1)(d), line 33. Omit “under section 176IG”. Insert instead “in accordance with regulations under section 176IB(3A)”.

No. 35 **GRNS No. 21 [c2026-198I]**

Page 24, Schedule 4.2[4], lines 1 and 2. Omit all words on the lines.

No. 36 **GRNS No. 22 [c2026-198I]**

Page 24, Schedule 4.2. Insert after line 4—

[4A] Fifth Schedule Members and procedure of NSW Procurement Board

Insert after clause 11—

12 Other attendees

- (1) The Local Jobs First Commissioner, appointed under the *Local Jobs First Act 2026*, may attend and participate in Board meetings.
- (2) The Local Jobs First Commissioner is not entitled to vote at Board meetings.
- (3) The Local Jobs First Commissioner is not a member of the Board.
- (4) The Local Jobs First Commissioner must be given notice of all Board meetings.

No. 37 **GRNS No. 23 [c2026-198I]**

Page 24, Schedule 4.2[5], line 11. Omit “**debarred**”. Insert instead “**listed**”.

No. 38 **GOVT No. 2 [c2026-260A]**

Page 26, proposed Schedule 6, definition of *local supplier*, line 24. Omit “Australia or New Zealand”. Insert instead “New South Wales or another Australian jurisdiction”.

No. 39 **GOVT No. 3 [c2026-260A]**

Page 26, proposed Schedule 6, definition of *local worker*, line 26. Omit “Australia or New Zealand”. Insert instead “New South Wales or another Australian jurisdiction”.

No. 40 **GOVT No. 4 [c2026-260A]**

Page 26, proposed Schedule 6, definition of *locally produced goods and services*, paragraph (a), line 28. Omit “Australia or New Zealand”. Insert instead “New South Wales or another Australian jurisdiction”.

No. 41 **GOVT No. 5 [c2026-260A]**

Page 26, proposed Schedule 6, definition of *locally produced goods and services*, paragraph (b), line 29. Omit “Australia or New Zealand”. Insert instead “New South Wales or another Australian jurisdiction”.